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ASSEMBLYMEMBER JESSE GABRIEL, LIEUTENANT GOVERNOR ELENI KOUNALAKIS ANNOUNCE LEGISLATION TO HELP HOLOCAUST SURVIVORS RECOVER STOLEN ART

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SACRAMENTO, Calif., March 28 -- The California State Assembly Democratic Caucus issued the following news release:

SACRAMENTO, CA - Today, Assemblymember Jesse Gabriel (D-Encino) unveiled legislation that would help California residents recover art and other personal property stolen during the Holocaust or other acts of genocide or persecution. Assembly Bill (AB) 2867 was introduced following a recent decision by the Ninth Circuit Court of Appeals that has allowed a Spanish museum to retain possession of a famous Impressionist masterpiece stolen by the Nazis. In that case, the Ninth Circuit's decision to apply Spanish law rather than California law resulted in a deep injustice, with The Los Angeles Times editorial board noting that it is "outrageous" and "shameful" for the Spanish museum to keep a painting that "[t]he whole world knows . . . was looted by the Nazis" from a Jewish family during the Holocaust. AB 2867 would address this injustice by mandating that California law must apply in lawsuits involving the theft of art or other personal property looted during the Holocaust or other acts of persecution.

"This bill will ensure that Holocaust survivors and other victims of persecution can secure justice through our legal system and recover property that rightfully belongs to them and their families," said Assemblymember Jesse Gabriel (D - Encino), who Co-Chairs the Legislative Jewish Caucus and previously represented Holocaust survivors as an attorney in private practice. "Our effort will make it crystal clear that California law must triumph over foreign law, that California stands with Holocaust survivors, and that cases must be decided based on truth, justice, and morality, not the misapplication of legal technicalities."

AB 2867 builds on prior California law which has always aimed to assist California residents in recovering stolen property, including property stolen during the Holocaust. Attorney General Rob Bonta and former Attorney General Kamala Harris both argued that California law should apply to cases like that involving the Cassirer family, who were forced to surrender a famous impressionist masterpiece by Camille Pissarro to the Nazis at the beginning of World War II. Despite such arguments, the Ninth Circuit recently found that Spanish law should apply in this case, effectively allowing a Spanish museum to retain ownership of the stolen painting.

"My time spent in Budapest as US Ambassador, where nearly half a million Jews were mercilessly killed and their property stolen, was a lesson in Holocaust history," said California Lieutenant Governor Eleni Kounalakis. "The decades-long effort to return confiscated property to Jewish families is morally courageous. I am proud to sponsor Assemblymember Gabriel's bill as an effort to empower California families to retrieve stolen and looted property that is rightfully theirs."

"My father, Claude Cassirer, never stopped thinking or talking about what happened to his illustrious Cassirer family and, on a larger scale, the Jews of Europe," said David Cassirer, the only surviving member of the Cassirer family. "As a Holocaust survivor, the proudest day of my father's life was in 1947, when he first became a U.S. citizen. He would have been terribly disappointed in the recent ruling by the American courts, allowing Spain, through its national museum, to keep the Pissarro painting stolen by the Nazis from his beloved grandmother, Lilly. But he would be so happy, and grateful, that the California legislature is taking the necessary steps to apply California's laws ensuring the return of looted art to its rightful owners."

"This legislation is imperative to effectuate California's and the Federal Government's long-standing laws and deeply held policies protecting the true owners of stolen art, and especially Nazi-looted art," said Samuel Dubbin, Co-Counsel for the Cassirer family and a long-time advocate for Holocaust survivors. "The Nazis perpetrated murder and theft on an incomprehensible scale. Yet, as Secretary of State Blinken noted recently, restitution of stolen art is

essential to counter Holocaust distortion and denial, as a "clear affirmation of what occurred" and "a small step toward giving something back to families and communities who lost everything - much of which can never be replaced."

AB 2867 now heads to the Assembly Judiciary Committee, where it is expected to be heard in the coming weeks.

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